

Sabareenath M.S vs Neethu M on 3 March, 2016

Author: A.M.Shaffique

Bench: A.M.Shaffique, Anu Sivaraman

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE A.M.SHAFIQU
&
THE HONOURABLE MRS. JUSTICE ANU SIVARAMAN

MONDAY, THE 21ST DAY OF AUGUST 2017/30TH SRAVANA, 1939

OP (FC).No. 377 of 2016 (R)

AGAINST THE COMMON ORDER IN I.A.NO.956 OF 2015 IN OP 166/2013 of
FAMILY COURT, MALAPPURAM DATED 03/03/2016

PETITIONER-RESPONDENT:

SABAREENATH M.S.
AGED 30 YEARS, S/O.SIVARAMAN,
MANGALATH HOUSE,
NEAR CHEERATTAMANNA SIVA TEMPLE,
KOCHUPARAMBIL HOUS, VALAMBUR P.O,
PERINTHALMANNA, MALAPPURAM DISTRICT-679 325,
REPRESENTED BY THE POA HOLDER SIVARAMAN,
RESIDING AT --DO- -DO-

BY ADVS.SRI.S.V.BALAKRISHNA IYER (SR.)
SRI.BIMAL K.NATH
SRI.SREEVALSAN.V
SMT.M.K.SHIMI
SRI.D.SREENATH
SRI. V.AJITH KUMAR [VETTATH]

RESPONDENT/PETITIONER:

NEETHU M.
AGED 25 YEARS, D/O.K.A.MANOCHARAN,
NARAYANEEYAM HOUSE, KANNIYAMPURAM,

OTTAPPALAM, PALAKKAD DISTRICT,
REPRESENTED BY POA HOLDER K.A.MANOCHARAN,
RESIDING IN -DO- -DO-

R1 BY ADV. SRI.K.R.VINOD
R1 BY ADV. MS.JENCY SUSAN JOSE
R1 BY ADV. SRI.V.SRI NATH

THIS OP (FAMILY COURT) HAVING BEEN FINALLY HEARD ON 21-08-2017, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

OP (FC).No. 377 of 2016 (R)

APPENDIX

PETITIONER(S)' EXHIBITS

- P1 A TRUE COPY OF THE OP NO.166 OF 2013 OF FAMILY COURT, MALAPPURAM
- P2 A TRUE COPY OF THE DIARY EXTRACT IN OP NO.166 OF 2013 OF FAMILY COURT, MALAPPURAM.
- P3 A TRUE COPY OF THE JUDGMENT DATED 19.03.2014 IN OP NO.166 OF 2013 OF FAMILY COURT, MALAPPURAM.
- P4 A TRUE COPY OF THE CERTIFICATE OF MARRIAGE OF THE PETITIONER WITH RESHMA RAJAN.
- P5 A TRUE COPY OF THE I.A.NO.957 OF 2015 OF FAMILY COURT, MALAPPURAM
- P6 A TRUE COPY OF THE IA NO.956 OF 2015 OF FAMILY COURT, MALAPPURAM
- P7 A TRUE COPY OF THE COUNTER AFFIDAVIT FILED BY THE PETITIONER TO I.A.NO.957 OF 2015 OF FAMILY COURT, MALAPPURAM.
- P8 A TRUE COPY OF THE COUNTER AFFIDAVIT FILED BY THE PETITIONER TO I.A.NO.956 OF 2015 OF FAMILY COURT, MALAPPURAM.
- P9 A TRUE COPY OF THE COMMON ORDER IN IA NO.956 OF 2015 AND I.A. NO.957 OF 2015 IN OP NO.166 OF 2013 OF FAMILY COURT, MALAPPURAM

RESPONDENT'S EXHIBITS

R1(a): THE COPY OF THE POWER OF ATTORNEY EXECUTED BY THE

RESPONDENT HEREIN.

- R1(b): THE COPY OF THE REPRESENTATION SUBMITTED BY THE FATHER OF THE RESPONDENT BEFORE THE CIRCLE INSPECTOR OF POLICE DATED 29.06.2015.
- R1(c): THE COPY OF THE DOCUMENT SHOWING THE RETIREMENT OF THE FATHER OF THE RESPONDENT FROM M/S.BHARATH HEAVY ELECTRICALS LTD. ON 24.09.2012.
- R1(d): THE COPY OF THE BILL ISSUED BY THE TRANSPORTING AGENCY WHICH HAD SHIFTED THE BELONGINGS OF THE RESPONDENT AND HIS FAMILY TO OTTAPALAM.
- R1(e) THE COPY OF THE I.A.NO.2198/2013 FILED BY THE PETITIONER IN THE EXHIBIT P1 ORIGINAL PETITION.
- R1(f): THE COPY OF THE DETAILS OF EMPLOYMENT OF THE RESPONDENT AT TATA CONSULTANCY SERVICES IN CHENNAI AND BANGALORE.
- R1(g): THE COPY OF THE ORDER OF THIS HON'BLE COURT IN B.A.NO.3625/2015 DATED 29.06.2015.
- R1(h): THE COPY OF THE PAPER PUBLICATION SEEN EFFECTED IN MADHYAMAM DAILY.

True Copy

P.STo Judge

A.M.SHAFIFIQUE, J

&

ANU SIVARAMAN, J

* * * * *

O.P.(FC) No.377 of 2016

Dated this the 21st day of August 2017

J U D G M E N T

Shaffique, J This original petition is filed challenging Ext.P9 order in I.A.No.956 and 957 in O.P.No.166/2013 of the Family Court, Malappuram.

2. The short facts arising in the matter are as under:

O.P.No.166/2013 is filed by the petitioner herein seeking for a divorce on the ground of cruelty under Section 13(1)(ia) of the Hindu Marriage Act, 1955. The marriage between the parties was solemnised on 05/05/2011 and they got separated on 05/02/2012. The original petition was filed on 11/02/2013. Though notice was

served on the respondent, she did not appear and therefore an ex parte decree had been passed on 19/03/2014 as evident from Ext.P2. After divorce, petitioner married another girl by name Reshma Rajan on 25/06/2015.

3. The respondent filed I.A.No.957/2015 to set aside the ex parte decree along with I.A.No.956/2015 to condone the delay of 456 days. Counter affidavit has been filed by the respondent to the above applications. However, the Family Court allowed the said applications by condoning the delay and the ex parte decree had been set aside by Ext.P9 order, which is being impugned.

4. Learned senior counsel appearing for the petitioner submits that sufficient reason was not shown to condone the gross delay of 456 days in filing the application to set aside the ex part decree. Notice was properly served as evident from the records of the Family Court and therefore the respondent was fully aware of the ex parte decree. Present application has been filed only when it was noticed that the petitioner has remarried. It is contended that notice has been issued to the respondent in two addresses, one in her address at Ottappalam and the other in the Trichy, Tamil Nadu, where she was residing at the time of marriage. Steps were taken repeatedly by sending notice by registered post and paper publication was effected on 12/03/2014. Even then the respondent had not appeared. Before filing the original petition, lawyer' notice was issued, which was received by the respondent and a reply notice was sent. Court notice was also issued in the very same address and therefore it is contended that there is proper service of notice and reason stated for condoning delay is absolutely false. Learned counsel for the petitioner, in support of his arguments, placed reliance upon the following judgments.

i) Sunil Poddar and Others v. Union Bank of India [2008(2) SCC 326]. This judgment has been cited to emphasize the point that if the defendant had knowledge about the proceedings and could have appeared and answered the plaintiff's claim, claimant cannot put forward a ground of non-

service of summons for setting aside the ex parte decree passed against him. That was a case in which the Bank had filed a proceedings before the Debts Recovery Tribunal (DRT) in August 1993 and some of the defendants appeared before Court, engaged an Advocate and filed a written statement. Matter was transferred to DRT Jabalpur. The Apex court found that when the case is transferred to another Debts Recovery Tribunal, the contention that the appellants were not aware of the proceedings before the DRT and the summons were not duly served, cannot be accepted. With reference to the news paper advertisement taken at the instance of DRT, Jabalpur, it is further observed that it is immaterial whether the appellants were subscribers to the said newspaper or not. Once a summons is published in a newspaper having wide circulation in the locality, it does not lie in the mouth of the person sought to be served that he was not aware of the publication and he was not reading the said newspaper.

ii) Basant Singh v. Roman Catholic Mission [2002(7) SCC 531]. In the above case, the Apex court was considering the effect of Section 27 of the General Clauses Act, 1897 read with Order V Rule 19A of the Code of Civil Procedure (for short 'CPC'). It is held that the presumptions under the said provision are rebuttable and it is always open to the defendants to rebut the presumption by leading

convincing and cogent evidence.

iii) *Abu Backer v. John* [1985 KLT 613]. In this case, this Court was considering the scope of Order V Rule 20 of CPC. It was held that the advisability of effecting substituted service is primarily for the trial Court to decide as Order V Rule 20 clearly says that substituted service can be allowed when the Court is satisfied that the conditions warrant such a situation. It is open for the trial court to order affixture or publication in a newspaper.

iv) *Kuldip Kumar Lal v. Suman Rani* [2012 KHC 2948]. This is a judgment of the Rajasthan High Court wherein it was held that if an application under Order IX Rule 13 of CPC for setting aside an ex parte decree of divorce is not filed within the period of 30 days as prescribed in Article 123 of the Limitation Act, the other party in whose favour the ex parte decree is passed, has a right to remarry after the expiry of the said period. This judgment was delivered in the light of Section 15 of the Hindu Marriage Act.

v) *Surendra Kumar v. Kiran Devi* [C.R.P.No.56/1996]. This is also a judgment of the Rajasthan High Court wherein it is held that, by contracting a second marriage, the interest of the second wife intervenes and all the proceedings of the courts can and must take conscious cognizance of events and developments subsequent to the initiation of proceedings provided the rules of fairness to both the sides are scrupulously obeyed. In that case, the petitioner has sought for annulment of marriage and according to the petitioner, at the time of filing the petition, the wife was mentally ill and was admitted in the Government Mental Hospital, Jaipur and was undergoing treatment for schizophrenia. The service of the notice was effected on her mother. The Court relied upon a judgment of the Supreme Court in *P.Venkateswarlu v. Motor And General Traders* [AIR 1975 SC 1409].

5. On the other hand, learned counsel appearing for the respondent supported the stand taken by the Family Court. It is stated that notice was not taken to her Ottappalam address and wrong address was shown in the notice which was not served on her. The petitioner was well aware of the fact that respondent was working at Bangalore and he was well aware of her address as well. Therefore notice in the local newspaper is not sufficient to infer proper service of notice, especially when she was residing out of Kerala. It was only when a relative of the respondent had informed the respondent's father that the petitioner has got remarried, her father had gone to the Ottappalam police station to make a complaint. The police summoned petitioner's father and only then it has been revealed that an ex parte decree had been passed granting divorce. It is argued that the respondent did not receive any notice in the Original Petition. The learned counsel for the respondent placed reliance upon the following judgments:

i) *Basheer M.Picha and Another v. Indian Bank* [2013 (2) KHC 425]. This judgment is cited for emphasizing the effect of substituted service, wherein this Court held that in order to serve notice by publication under Order V Rule 20, the Court should be satisfied that there is reason to believe for the purpose of avoiding service that the defendant is keeping out of its way or that for any other reason, the defendant cannot be served in the ordinary way, and that too, only in exceptional circumstances.

ii) Kunhimon v. Jameel [2010(3) KHC 263]. In this case, it was held that if a person is working in Gulf Country and if publication is taken out in a local daily, that will not amount to proper service.

iii) Dwarika Prasad v. Shakuntala Dubey and Others [2010 KHC 6449] This is a judgment of the Chattishgarh High Court wherein it is held that in order to effect substituted service of summons under Order V to Rule 20, Clause (1A) of CPC by affixing notice in some conspicuous place in the Court house and conspicuous part of the house of the defendant is sine qua non for proceeding under clause 1(A) of Rule 20 of Order V.

iv) Sharma R.K and Others v. Ashok Nagar Welfare Association and Co. [2001 KHC 3193]. In this case also, the High Court of Delhi held that to effect service of summons under Order V Rule 20, if the summons already issued is still awaited, substituted service cannot be taken.

v) Deepali Pratap Sonawane v. Pratap Irappa Sonawane [2015 KHC 3557]. In this case, it was held that to pass an ex parte decree in favour of her husband by holding that summons was served on wife, it has to be shown that summons was served on the party in the manner prescribed by the Civil Procedure Code. If no such summons had been served, the ex parte decree has to be set aside.

6. The Family Court, in its common order dated 03/03/2016 observed that summons was originally issued at the residential address at Trichy, which is not seen returned and there was no explanation as to what happened to the summons. Thereafter, summons was issued in the Bangalore address furnished by the petitioner and that summons was returned with the postal endorsement "no such addressee". Thereafter, summons was published in Madhyamam, a Malayalam daily. The Family Court observed that there was nothing to indicate that any attempt was made to issue summons through Court. It is observed that in so far as service of notice is not proper, the subsequent event of the petitioner marrying another person cannot be taken note of. Hence it was found that there was no proper service of summons and accordingly, the delay in filing the application to set aside the ex parte decree had been condoned and the ex parte decree had been set aside.

7. The first question to be considered is whether there is proper service of notice on the respondent. The Family Courts (Kerala) Rules 1989 prescribes the mode of institution of proceedings and the service of summons to respondent. As per Rule 5, in all matters other than those under Chapter IX of Code of Criminal Procedure, 1973, the Summons to appear and answer shall be Form No.1 in the Appendix with such variations as the circumstances of the case may require. Rule 6 indicates that the name and address of the party shall be stated in every summons including every process of the Court issued at the instance of such party. Rule 8 prescribes that the summons shall be made returnable within three weeks from the date of the filing of the petition, if the respondent resides within the local limits of the Court, and within five weeks from the date of filing of the petition, if the respondent resides outside the local limits. Rule 10 prescribes the mode of service of summons which indicates that summons together with a copy of the petition or application and annexures, if

any, shall be served in the manner prescribed in the CPC save the proceedings under Chapter IX of the Code of Criminal procedure. Rule 11 indicates that unless the Court shall otherwise order, the service of a summons to appear and answer shall be proved by evidence showing that the summons was served in the manner provided by the CPC. As per Rule 12, substituted service of the summons shall be governed by the corresponding provision in the CPC. Rule 50 further indicates that unless otherwise stated in the Rules, provision to the CPC shall apply to the proceedings before the Family Court. Order V of the CPC, prescribes the procedure for service of summons. Order V Rule 9 indicates that as per Rule 9, when the defendant resides within the jurisdiction of the Court in which the suit is instituted or has an agent resident within that jurisdiction of the said Court which has power to accept summons, the summons shall unless the Court otherwise directs be delivered or sent either to the proper Officer to be served by him or one of his subordinates or to such courier services as are approved by the Court. As per sub Rule (3) of Rule 9, the service of summons may be made by delivering or transmitting a copy thereof by registered post acknowledgment due, addressed to the defendant or his agent empowered to accept the service or by speed post or by such courier services as are approved by the High Court or by any other means of transmission of documents (including fax message or electronic mail service) provided by the rules made by the High Court. Sub Rule (4) further indicates that where a defendant resides outside the jurisdiction of the Court in which the suit is instituted, and the Court directs that the service of summons on that defendant may be made by such mode of service of summons as is referred to sub-Rule (3) (except by registered post acknowledgment due), the provisions of Rule 21 shall not apply. Rule 21 reads as under:

"21. Service of summons where defendant resides within jurisdiction of another Court.- A summons may be sent by the Court by which it is issued, whether within or without the State, either by one of its officers or by post or by such courier service as may be approved by the High Court, by fax message or by Electronic Mail service or by any other means as may be provided by the rules made by the High Court] to any Court (not being the High Court) having jurisdiction in the place where the defendant resides."

8. In the case on hand, the order sheet would show that direction was issued by the Court to issue notice to respondent on 18/02/2013. On 30/05/2013, petitioner was present. He was directed to take further steps and the case was adjourned to 23/09/2013. On 23/09/2013, the Judge was on leave and the case was posted to 28/01/2014. The case was advanced to 08/11/2013, on which date, direction was issued to serve notice on the respondent in the correct address. On 28/01/2014 also, direction was issued to the petitioner to issue notice to the respondent in the correct address. On 15/02/2014, it seems that an application was filed to take notice by paper publication and the Court directed to "produce paper publication." On 15/03/2014, paper publication is produced. The respondent was called absent and set ex parte. On 18/03/2014, an ex parte affidavit is filed. It is indicated that the petitioner is in Australia and a General Power of Attorney is produced. An order was pronounced on 19/03/2014.

9. Records reveal that, notice by registered post was sent from the Family Court on 16/11/2013 with acknowledgment due with hearing date on 28/01/2014. The address and name was shown as Neethu Manoharan, Employee ID-335988, 4th floor, Discovery Building, ITPL, P.O. White Field,

Bangalore-560 066. The hearing date was shown as 28/01/2014. The notice was returned with the endorsement that there is no such person in the address. I.A.206/2014 was filed on 29/01/2014 seeking for taking steps by paper publication in a daily newspaper. In the affidavit filed by the counsel appearing for the petitioner, it is stated that, at the time of filing the case, process was taken in the residential address and thereafter in the office address of the respondent. But, all notices were returned without being served and the respondent was willfully avoiding receipt of notices. The said application is seen allowed on 15/02/2014 directing publication in Madhyamam daily. Madhyamam daily is produced, which is dated 12/03/2014. The address of the respondent is shown as M.Neethu, D/o K.A.Manoharan, Narayaneeyam Veedu, Opp.Semalik Hospital, Kanniyambram, Ottappalam. The publication indicates that the case is posted to 15/03/2013. Apparently, the publication is defective since the date of appearance is shown as 15/3/2013 whereas the Court had posted the case on 15/03/2014. In the petition, the address of the petitioner was shown as under:

"Neethu.M, Aged 26, D/o.K.A.Manoharan, Narayaneeyam Veedu, Opposite to Semalik Hospital, Kanniyambram, Ottappalam, Palakkad.

Now residing at 33/220, Kailasapuram, Bhel Township, Trichy 14, Tamilnadu."

10. In a summons form prepared by the Office of the Family Court on 11/09/2013 under Orders of the Family Court, it is seen that summons was to be taken in the address of the respondent at Trichy. There is nothing to indicate that such a summons has actually been sent, whereas a memo is seen filed on 08/11/2013 to take process in the address at Bangalore. There is no material available in the case to indicate that summons was taken to the Trichy address. Even according to the petitioner, respondent was residing at Bangalore during the relevant time and probably it is on account of the said fact that notice to the respondent was taken in the correct address which is seen from the endorsement in the diary extracted on 08/11/2013. When the notice was returned stating that there is no such addressee, the counsel had requested for a paper publication to be published in Madhyamam daily. Madhyamam daily is in vernacular language and has circulation only within State of Kerala.

11. The argument of the learned counsel for the petitioner is that there was no necessity to take steps in the correct address or by way of paper publication as done in terms of the proceedings dated 08/11/2013, 21/08/2014 and 15/02/2014, since the notice issued initially itself is deemed to be served in terms of Order 5 Rule 9(5) and Section 27 of the General Clauses Act. It is submitted that when notice is taken in the address at Trichy and the registered cover has not been returned, it is deemed to be served. Once it is found that the summons is deemed to be served, the Court should not have set aside the ex parte decree taking into account the subsequent events as well since the petitioner has, in the interregnum, married another person and her right and interest will also be affected by setting aside the ex parte decree.

12. The question therefore to be considered is, in which address steps had been taken to serve summons on the respondent. In the petition, it is stated that her present address was in Trichy, invariably summons has to be taken by registered post, since the Court has not stated any specific mode for service of summons. In the process memo filed on 11/02/2013, the address shown is that

as shown in the petition itself. But, there is nothing to indicate that the registered cover sent in that address had returned. If such was the situation, Court could have made a declaration as provided under the proviso to Sub Rule (5) of Rule 9 to Order V of the CPC. Rule 9(5) of Order V along with proviso reads as under:

"9. Delivery of summons by Court.-

(1) xxxx xxxx (5) When an acknowledgment or any other receipt purporting to be signed by the defendant or his agent is received by the Court or postal article containing the summons is received back by the Court with an endorsement purporting to have been made by a postal employee or by any person authorised by the courier service to the effect that the defendant or his agent had refused to take delivery of the postal article containing the summons or had refused to accept the summons by any other means specified in sub-rule (3) when tendered or transmitted to him, the Court issuing the summons shall declare that the summons had been duly served on the defendant:

Provided that where the summons was properly addressed, pre-paid and duly sent by registered post acknowledgment due, the declaration referred to in this sub-rule shall be made notwithstanding the fact that the acknowledgment having been lost or mislaid, or for any other reason, has not been received by the Court within thirty days from the date of issue of summons."

13. Apparently, summons has been issued by the Family Court in terms with the proviso to sub Rule (5) of Rule 9 of Order V of the CPC. But without attempting to get a declaration as provided under the proviso, an attempt has been made by the petitioner seeking to serve notice in the correct address by giving the address at Trichy which is evident from the summons form prepared by the Court Officer on 11/09/2013. There is no material to indicate that registered notice was taken in the said address and even assuming that notice was sent by registered post acknowledgment due and it is not returned, no declaration had been made by the Court in terms of proviso to Rule 9(5). Petitioner again took steps in the correct address and has shown the Bangalore address. The registered cover sent to Bangalore address is returned with the endorsement that "there is no such addressee". Court, thereafter, permitted substituted service to be taken. Order V Rule 20 reads as under:

"20. Substituted service.- (1) Where the Court is satisfied that there is reason to believe that the defendant is keeping out of the way for the purpose of avoiding service, or that for any other reason the summons cannot be served in the ordinary way, the Court shall order the summons to be served by affixing a copy thereof in some conspicuous place in the Court-house, and also upon some conspicuous part of the house (if any) in which the defendant is known to have last resided or carried on business or personally worked for gain, or in such other manner as the Court thinks fit."

14. As already stated, there is defect in the publication. The date of appearance was mistakenly shown as 15/03/2013 instead of 15/03/2014. Further the publication was made as per newspaper advertisement only on 12/03/2014, without giving sufficient time to make enquiry.

15. Of course, the learned counsel for the respondent has a contention that the publication ought to have been made in the place where she is known to have actually and voluntarily resided, carried on business or have personally worked for gain and affixture should have been simultaneously made. In view of the patent defect of the publication, we do not think necessary for us to render a finding in this regard.

16. The discussion as stated above clearly points out to the fact that there was no proper service of summons to the respondent and therefore respondent was justified in contending that she was not served with any summons before passing a decree against her.

17. Now the only question is whether, on account of changed circumstances, there is any reason to set aside the ex parte decree. The changed circumstance pointed out by the petitioner is that he has remarried and the rights of the third party is also involved. Learned senior counsel has placed reliance on the judgment in Surendra kumar (supra). Perusal of the same would show that, that was a case in which notice was served on the mother of the defendant and since there was no appearance, an ex parte decree was passed. That is not the situation in the present case. The Rajasthan High Court relied upon an earlier judgment of the same court in Kuldip Kumar Lal (supra). That was also a case where the respondent appeared before the Court through a counsel and filed reply. Subsequently there was failure to appear and an ex parte decree had been passed. The facts of the present case cannot be equated with the cases decided by the Rajasthan High Court.

18. There is no dispute about the fact that subsequent events can also be taken into consideration by the Court while considering the application to set aside the ex parte decree. But the question in this case is whether the approach of the petitioner was bona fide or not. The petitioner was aware of the fact that the respondent was not residing in the address as shown in the petition. That is the reason why he sought for taking summons in the correct address. Though registered notice was taken in the correct address given by him, it was returned with the endorsement that the addressee is not available. No steps have been taken to serve notice as contemplated under the CPC. Whereas, without even knowing the actual address of the respondent, he had given the address of the parties at the time of marriage as well as her father's place of residence and the registered covers were not returned. When the registered covers, if sent, had not returned, he did not attempt to seek a declaration in terms with the proviso to Order V Rule 9(5). The learned counsel filed an affidavit stating that though repeated notices were taken, the summons could not be served and the Court mechanically allowed the application for advertisement in the Madhyamam daily. This is an instance where no steps were taken by the petitioner to ensure that he obtains decree in a fair manner. He appeared through a power of attorney and obtained a decree. It is true that the setting aside of the decree will affect his second marriage. But, in a case where there is absolute failure to ensure proper service of notice on the respondent, we do not think that the subsequent marriage of the petitioner should be a reason to deny a contest for the respondent in terms with the procedural requirement.

19. Further, reference to the ex parte judgment would show that the Family Court has not considered any aspect of the matter, whereas a mechanical order was passed without narrating the facts to prove the allegations made in the case.

20. Under such circumstances, we do not find any error being committed by the Family Court in allowing the application to set aside the ex parte decree. There is no reason to interfere with the said order.

This original petition is dismissed.

(sd/-) (A.M.SHAFFIQUE, JUDGE) (sd/-) (ANU SIVARAMAN, JUDGE) jsr